

25NWLC63842 25NWLC63842

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-24

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Case Number: 25NWLC63842 Hearing Date: September 24, 2026 Dept: Y

25NWLC63842: CAPITAL ONE, N.A. vs SAMORIA MARTIN

Tentative Ruling:

The Court has read and considered Defendant Samoria Martin's ("Defendant") Motion to Quash Service of Summons ("Motion"), including the supporting declaration. Defendant filed and served its Motion on August 12, 2026 along with a Proof of Service by mail on Plaintiff Capital One, N.A. ("Plaintiff").

The Motion was initially set for hearing on September 4, 2026. The Court continued the Motion to September 24, 2026 so that proper notice of the Motion could be provided to Plaintiff. No opposition has been filed by Plaintiff.

Defendant specially appears and moves to quash service of summons pursuant to Code of Civil Procedure § 418.10. Defendant argues that he was not properly served in compliance with the law.

Evidence Code § 647 creates a rebuttable presumption of valid service when, as here, a registered process service files a Proof of Service with the Court. The individual questioning the validity of service must present sufficient evidence to demonstrate that service did not occur as stated in the Proof of Service. Evid. Code §§ 647, 660.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on July 21, 2026 creating a presumption of service under Evidence Code section 647. The Proof of Service indicates personal service on July 17, 2026 at 4:31 p.m. at "19039 Kittridge St., Apt. 47, Reseda, CA 91335." The person served was described as Female, Age: 26-30, Skin Tone: White, Hair: Brown, Eye Color: Hazel, Height: 5'0"-5'3", Weight: 171-190 lbs.

Defendant's declaration, which was signed under penalty of perjury, states that she is not the person described in the Proof of Service. She also states, under penalty of perjury, that she was not personally served with the Complaint and did not authorize anyone to accept service of the Summons and Complaint on her behalf. She learned of this lawsuit through mailed consultation advertisements. The Court finds that Defendant has rebutted the presumption of personal service.

Having considered the moving papers, Defendant's Motion to Quash Service of Process is GRANTED.

Clerk to give notice.